

Calendar Line # 5
Case Name Zaki Jones vs Costco Wholesale Corporation et al
Case No. 25CV483469
Demurrer Before the court is defendant Costco Wholesale Corporation’s demurrer to plaintiff’s complaint. Pursuant to California Rule of Court 3.1308, the court issues its tentative ruling as follows. I. <u>BACKGROUND</u> On February 15, 2024, plaintiff Zaki A. Jones (“Plaintiff”) was a customer at defendant Costco Wholesale Corporation’s (“Costco”) warehouse location in Sunnyvale, a business establishment open to the public. (Complaint, page 2). Plaintiff elected to use the self-checkout area which was open and available for customer use. (<i>Id.</i>) Defendant Maria Doe (“Doe”), an employee of defendant Costco, repeatedly approached Plaintiff, directed Plaintiff to use a cashier line instead of self-checkout, and questioned Plaintiff whether items in his cart had been scanned. (<i>Id.</i>) Defendant Doe persisted in monitoring, hovering near, and repeatedly questioning Plaintiff while Plaintiff was checking out, despite Plaintiff’s clear indication that he wished to complete his transaction without further interference. (<i>Id.</i>). Other customers in the self-checkout area were not subjected to the same level of scrutiny, monitoring, questioning, or direction to leave self-checkout. (<i>Id.</i>). Plaintiff perceived defendant Doe’s conduct as racial profiling, as Plaintiff was singled out for heightened scrutiny and interference under circumstances in which other customers were not. (Complaint, pages 2 – 3). Plaintiff immediately complained to defendant Costco’s in-store management. (Complaint, page 3). The following day, a manager from defendant Costco contacted Plaintiff, acknowledged the concern, confirmed there was no policy requiring Plaintiff to use a cashier line, and stated the employee’s handling of the situation required further discussion and correction. (<i>Id.</i>). As a direct and proximate result of defendants’ conduct, Plaintiff suffered humiliation, emotional distress, anxiety, and loss of the full and equal enjoyment of defendant Costco’s services and Plaintiff no longer feels comfortable returning to the Sunnyvale location due to fear of repeated discriminatory treatment. (<i>Id.</i>). On December 31, 2025, Plaintiff¹ filed a complaint against defendants Costco and Doe asserting a single cause of action for [violation of the] Unruh Civil Rights Act – Civil Code §51. On March 30, 2026, Defendant Costco Wholesale Corporation (“Costco”) filed this demurrer. The motion is accompanied by a proof of electronic service on Plaintiff on that same day. Plaintiff filed an Opposition on August 27, 2026. Defendant filed a notice of non-opposition on August 27, 2026 seeking that the Court grant the demurrer without leave to amend.

¹ Plaintiff is self-represented. Although a judge should ensure that self-represented litigants are not being misled or unfairly treated (see *Gamet v. Blanchard* (2001) 91 Cal.App.4th 1276, 1284), self-represented litigants are not entitled to special treatment with regard to the Rules of Court or Code of Civil Procedure. “[W]e cannot disregard the applicable principles of law and accord defendant any special treatment because he instead elected to proceed in propria persona. [Citations.]” (*Stein v. Hassen* (1973) 34 Cal. App. 3d 294, 303). “A litigant has a right to act as his own attorney [citation] ‘but, in so doing, should be restricted to the same rules of evidence and procedure as is required of those qualified to practice law before our courts.’” (*Lombardi v. Citizens Nat’l Trust & Sav. Bank* (1955) 137 Cal.App.2d 206, 208-209).

The Court has carefully reviewed the Defendant notice of demurrer and memorandum of points and authorities (totaling 12 pages); Declaration of Clara Rademacher (totaling 2 pages); James C. Truxaw in support of the demurrer and attached Exhibits A- B (totaling 25 pages); Request for Judicial Notice (totaling 125 pages); proofs of services; and the pleadings.

II. PROCEDURAL MATTERS

A. UNTIMELY OPPOSITION

As a preliminary matter, the court notes that Plaintiff's opposition is untimely filed and served. Code of Civil Procedure section 1005, subdivision (b) states, "All papers opposing a motion ... shall be filed with the court and a copy served on each party at least nine court days ... before the hearing." Based on a hearing date of September 3, 2026, Plaintiff's opposition had to be filed and served no later than August 21, 2026. Plaintiff did not file or serve his opposition until August 27, four *court* days late.

California Rules of Court, rule 3.1300, subdivision (d) states, "No paper may be rejected for filing on the ground that it was untimely submitted for filing. If the court, in its discretion, refuses to consider a late filed paper, the minutes or order must so indicate." Since the court has discretion to consider a late filed paper, since defendant Costco has not suffered any prejudice from the late filing, and to avoid the expenditure of any further judicial resources, the court will look past this procedural violation and consider the opposition on its merits. However, Plaintiff is hereby admonished for the procedural violation. Any future violation may result in the court's refusal to consider the untimely filed papers.

B. MEET AND CONFER REQUIREMENTS

Code of Civil Procedure section 430.41 requires parties to meet and confer prior to filing the demurrer. On February 20, 2026, Defendant's Plaintiff and left a voice message, and followed up with an email. On February 24, 2026, defense counsel emailed again. Parties met and conferred by telephone on March 13, 2026 regarding the defendant's intent to file this demurrer. (Declaration of Rademacher, ¶¶ 3-5). Thus, the court finds Defendant complied with Code of Civil Procedure section 430.41 and now considers the demurrer on its merit.

III. LEGAL STANDARD

Pursuant to Code of Civil Procedure section 430.10, a party may demur to a complaint on the grounds that it "does not state facts sufficient to constitute a cause of action." (Code Civ. Proc., § 430.10, subd. (e)). A demurrer tests whether the complaint states a cause of action. (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747 (*Hahn*)). When considering demurrers, courts accept all well pleaded facts as true. (*Fox v. JAMDAT Mobile, Inc.* (2010) 185 Cal.App.4th 1068, 1078). In ruling on a demurrer, the Court treats it "as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law." (*Piccinini v. Cal. Emergency Management Agency* (2014) 226 Cal.App.4th 685, 688, citing *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318 (*Blank*)). "A general demurrer will lie where the complaint 'has included allegations that clearly disclose some defense or bar to recovery.' [Citation.]" (*Cryolife, Inc. v. Superior Court* (2003) 110 Cal.App.4th 1145, 1152).

When a demurrer is sustained with leave to amend, "[t]he plaintiff may not amend the complaint to add a new cause of action without having obtained permission to do so, unless the new cause of action is within the scope of the order granting leave to amend." (*Harris v. Wachovia Mortg., FSB* (2010) 185 Cal.App.4th 1018, 1023; see also *Patrick v. Alacer Corp.* (2008) 167 Cal.App.4th 995, 1015 [plaintiff may add a new cause of action when it "directly responds to the court's reason for sustaining the earlier demurrer"]).

The Unruh Civil Rights Act states that "[a]ll persons within the jurisdiction of this state are free and equal and no matter what their... race, color...[or] national origin... are entitled to the full and equal accommodations, advantages,

facilities, privileges or services in all business establishments of every kind whatsoever.” (Civ. Code, §51). A plaintiff may enforce his or her rights under the Unruh Civil Rights Act by bringing an action for damages. (Civ. Code, §52, subd. (a); see also CACI, No. 3060).

“The Unruh Act was enacted to ‘create and preserve a nondiscriminatory environment in California business establishments by “banishing” or “eradicating” arbitrary, invidious discrimination by such establishments.’” (*Flowers v. Prasad* (2015) 238 Cal.App.4th 930, 937). “A plaintiff can recover under the Unruh Civil Rights Act on two alternate theories: (1) a violation of the ADA [citation]; or (2) denial of access to a business establishment based on intentional discrimination.” (*Martin v. Thi E-Commerce, LLC* (2023) 95 Cal.App.5th 521, 527).

IV. ANALYSIS

Defendant Costco demurs, initially, on the ground that to Plaintiff’s has not alleged and cannot establish the first element of his claim, denial of full and equal services. Costco emphasizes that Plaintiff was able to complete his purchase at the Costco Sunnyvale warehouse, despite interactions with Maria Doe. (Complaint ¶ 8). Thus, there is no Unruh Act claim because there is no denial of full and equal accommodations. (Demurrer, p. 9). “In general, a person suffers discrimination under the Act when the person presents himself or herself to a business with an intent to use its services but encounters an exclusionary policy or practice that ***prevents him or her from using those services.***” (*White v. Square, Inc.* (2019) 7 Cal.5th 1019, 1023; emphasis added). “To state a claim under the Unruh Civil Rights Act, a plaintiff must allege the defendant is a business establishment that intentionally discriminates against and/or ***denies plaintiff full and equal treatment of a service,*** advantage, or accommodation based on plaintiff’s protected status.” (*Liapes v. Facebook, Inc.* (2023) 95 Cal.App.5th 910, 922; emphasis added). As defendant Costco points out, Plaintiff alleges he “successfully completed his transaction.” (Complaint, page 2, line 28).

In opposition, Plaintiff argues that regardless of whether or not he was able to complete purchase of goods, the issue is whether he was subject to unequal treatment and racial harassment while shopping at Costco. (Opposition, p. 1). Plaintiff persuasively cites *Smith v. BP Lubricants USA Inc.* (2021) 64 Cal.App.5th 138, 153 – 154 where the court explained:

That Smith was “not denied anything” is not dispositive, as BP and Pumarol contend, because the Unruh Civil Rights Act mandates “equal treatment of patrons in *all aspects* of the business.” (*Koire v. Metro Car Wash* (1985) 40 Cal.3d 24, 29 [219 Cal. Rptr. 133, 707 P.2d 195], italics added). ***The Unruh Civil Rights Act does not require that a victim of business establishment's discriminatory, unequal treatment be denied services or demand equal treatment to state a claim under the act.*** (See *Angelucci v. Century Supper Club, supra*, 41 Cal.4th at p. 168).

...

a business establishment's unequal, race-based treatment of its customers is unlawful under the Unruh Civil Rights Act—***even if its customers are not denied services.*** This is true whether the discriminatory treatment is verbal, physical, or financial. Thus, in the context of alleged racial discrimination, the dispositive question under the Unruh Civil Rights Act is whether the plaintiff faced unequal treatment on account of his or her race that members of other races did not experience.

(Italics original. emphasis added).

Defendant Costco argues next that Plaintiff presents no facts to show that race was a substantial motivating reason why the Maria Doe inquired about items or directed him to the cashier line. Defendant emphasizes that there is no facts presented regarding intentional discrimination. (*Id.*, p. 9; See CACI, No. 3060). Plaintiff’s complaint states, in conclusory fashion, “Defendants’ conduct denied Plaintiff the full and equal enjoyment of Costco’s services on the basis of race.” Defendant Costco contends Plaintiff’s complaint lacks any facts from which such intentional

discrimination may be inferred. Even if Plaintiffs claim that similarly situated customers at the self-checkout line were not subject to Maria Doe’s inquiry, Plaintiff fails to allege that Costco’s monitoring of the self-checkout line is race based. (*Id.*, p. 10). Defense emphasizes that “the Unruh Act requires allegations supporting willful, affirmative misconduct with the specific intent to accomplish discrimination on the basis of [a protected trait].” *Martinez v. Cot’n Wash, Inc.*, 81 Cal. App. 5th 1026, 1036 (2022) (internal citations and quotations omitted) (citing *Koebke v. Bernardo Heights Country Club*, 36 Cal. 4th 824, 854–54, 31 (2005)). (Demurrer, p. 11). Thus, defense avers that there is no showing of any willful, affirmative conduct.

In opposition, Plaintiff acknowledges his complaint lacks such factual detail and requests leave to amend to allege more specific facts. Plaintiff proffers that other customers using nearby self-checkout were not subject to the alleged scrutiny, monitoring, questioning, or harassment. (Opposition, p. 3). Plaintiff also asserts that he suffered humiliation, emotional distress, and anxiety due to Maria Doe’s treatment and no longer feels comfortable returning to Costco’s Sunnyvale warehouse. (*Id.*, at p. 4). Thus, Plaintiff asserts that there is an inference of intentional and affirmative discriminatory conduct. (*Id.*).

Pursuant to Civil Code sections 51 and 52, the Unruh Act protects individuals from arbitrary and intentional discrimination by California business establishments. (Civ. Code, §§ 51, 52). “The Unruh Act, codified at [Civil Code] section 51, was ‘enacted to prohibit discriminatory conduct by individual proprietors and private entities offering goods and services to the general public.’ [Citations.]” (*Thurston v. Omni Hotels Management Corporation* (2021) 69 Cal.App.5th 299, 30). “California’s Unruh Act creates a cause of action for any person who is denied the right to ‘full and equal accommodations, advantages, facilities, privileges, or services in all business establishments of every kind whatsoever’ based on that person’s ‘sex, race, color, religion, ancestry, national origin, disability, medical condition, genetic information, marital status, sexual orientation, citizenship, primary language, or immigration status.’ (Civ. Code, §§ 51, subd. (b), 52).” (*Mackey v. Board of Trustees of California State University* (2019) 31 Cal.App.5th 640, 660). “The Act is to be given a liberal construction with a view to effectuating its purposes.” (*Koire v. Metro Car Wash* (1985) 40 Cal.3d 24, 28). Thus, the Unruh Act prohibits intentional discrimination “made by a ‘business establishment’ in the course of furnishing goods, services or facilities to its clients, patrons or customers.” (*Alcorn v. Anbro Engineering, Inc.* (1970) 2 Cal.3d 493, 500). “[T]he Unruh Civil Rights Act ‘can be violated in a number of ways by words alone.’” (*Smith v. BP Lubricants USA Inc.* (2021) 64 Cal.App.5th 138, 150). “It can also be violated by a business establishment’s unequal treatment of its patrons on impermissible grounds.” (*Id.* at pp.150-151).

Here, Plaintiff alleges that he was harassed and redirected from a self-checkout kiosk at Costco Sunnyvale’s warehouse by Maria Doe. Plaintiff asserts that he was targeted based on his race and observed people of white and Asian decent were not redirected from the self-checkout kiosk. The Court finds the Complaint does not provide any evidence that Plaintiff was denied full and equal access to complete purchase of goods while shopping at Costco Sunnyvale’s warehouse. The Complaint lacks sufficient facts to show how the elements of Unruh is established.

Defense also requests that the court sustains the demurrer and denies any leave to amend asserting that it would be futile. (Demurrer, p. 11-12). Plaintiff seeks to have the demurrer overruled and in the alternative seeks leave to amend.

Courts generally allow at least one opportunity to amend a complaint, after sustaining a demurrer. (*City of Stockton v. Sup.Ct.* (2007) 42 Cal.4th 730, 747; Cal. Prac. Guide: Civ. Pro. Before Trial (The Rutter Group 2023) ¶7:129). Leave to amend is liberally construed to allow for the plaintiffs the reasonable possibility of successful amendment. (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 348). Therefore, the Court exercises its discretion to grant leave to amend so that Plaintiff has an opportunity to allege facts sufficient to state a claim.

V. CONCLUSION

Based on the foregoing, Defendant Costco's demurrer to Plaintiff's complaint on the ground that the pleading does not state facts sufficient to constitute a cause of action [Code Civ. Proc., §430.10, subd. (e)] for violation of the Unruh Civil Rights Act is SUSTAINED with twenty (20) days' leave to amend from the date of this hearing.

The Court will prepare the formal Order.

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Calendar Line # 6
Case Name Prasun Maharatna vs Flexton Inc. et al
Case No. 26CV483967
Motion to Compel <u>I. BACKGROUND</u> This case stems from a wrongful termination claim, on August 8, 2026, Plaintiff Prasun Maharatna (“Maharatna”) filed a Complaint alleging thirteen causes of actions against his former employer, Defendant Flexton Inc. and Rajdeep Jaiswal (collectively “Defendants”), including: (1) violation Government Code section 12900 et seq., disability discrimination; (2) failure to prevent, investigate, and remedy discrimination under Government Code section 12900; (3) retaliation in violation of Government Code section 12900; (4) retaliation in violation of Labor Code section 1102.5; (5) constructive wrongful termination in violation of public policy (count I); (6) constructive wrongful termination in violation of public policy (count II); (7) failure to timely pay earned wages under Labor Code sections 204 and 210; (8) waiting time penalties in violation of Labor Code sections 201 and 203; (9) failure to reimburse business expenses in violation of Labor Code section 2802; (10) breach of contract; (11) breach if implied covenant of good faith and fair dealing; (12) intentional infliction of emotional distress; and (13) negligence. Defendants filed an Answer on February 27, 2026. Before the Court is Plaintiff’s motion to compel responses to request for production of documents, set one, and sanctions. The motion was accompanied by a proof of service indicating electronic mail service to Defendants’ counsel on that same day. The motion to compel is unopposed. Per Code of Civil Procedure section 1005(b) opposition papers were due on August 21, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c); <i>Sexton v. Superior Court</i> (1997) 58 Cal.App.4th 1403, 1410). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (<i>Laguna Auto Body v. Farmers Ins. Exchange</i> (1991) 231 Cal.App.3d 481, 489). The Court has carefully reviewed the following: notice of motion and memorandum of points and authorities (“MPA”) in support of the motion to compel (totaling 9 pages); Declaration of Alex Purcell in support of the motion and attached Exhibits A-C (totaling 41 pages); proofs of services; and the pleadings. <u>II. LEGAL STANDARD</u> Pursuant to Code of Civil Procedure section 2031.260, a party must respond to requests for production of documents within 30 days after service. (Code Civ. Proc., § 2031.260, subd.(a)). If a party to whom requests for production of documents are directed does not provide timely responses, the requesting party may move for an order compelling response to the demand. (<i>Id.</i>, § 2031.300, subd. (b)). There is no time limit for a motion to compel initial responses, and no meet and confer efforts are required. (<i>See Id.</i>, § 2031.300; <i>Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants</i> (2007) 148 Cal.App.4th 390, 411). Nor must a separate statement be filed. (Cal. Rules of Court, rule 3.1345(b)(1)). In addition, a party who fails to provide a timely response generally waives all objections. (Code Civ. Proc., § 2031.300, subd. (a)). “In addition to the demands for inspection, copying, testing, or sampling permitted by this chapter, a party may propound a supplemental demand to inspect, copy, test, or sample any later acquired or discovered documents, tangible things, land or other property, or electronically stored information in the possession, custody, or control of the party on whom the demand is made.” (Code Civ. Proc., § 2031.050, subd. (a)).